



CHAPTER x.

An Act to confer further powers on the Council in regard to their electricity undertaking lands and other matters to make further and better provision for the improvement health and local government of their district and for other purposes. [18th July 1947.]

WHEREAS the urban district of Felixstowe (in this Act referred to as "the district") is under the government of the urban district council of Felixstowe (in this Act referred to as "the Council"):

And whereas under the powers of the Felixstowe and Walton Improvement Act 1902 (hereinafter called "the Act of 1902") the Council have constructed and are the owners of a sea wall and a promenade in line therewith for a distance of nearly two miles and are the owners of the foreshore beach and sands in the district for a distance of over three miles including the entire length of the centre of the district with the exception of a short length under and on either side of the pier and the Council are also the owners of over fifteen acres of land laid out as gardens adjoining the promenade and of a pavilion known as the "pier pavilion" situate opposite the entrance to the pier: ^{2 Edw. 7. c. clxiii.}

And whereas the Council are the undertakers for the supply of electricity under the provisions of the Felixstowe and Walton Electric Lighting Order 1900 (which was scheduled to and confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1900) and under the provisions of that Order and the Felixstowe Electricity (Extension &c.) Special Order 1928 are now supplying electricity throughout the district and the parishes of Trimley St. Mary and Trimley St. Martin in the rural district of Deben and it is expedient that further powers should be conferred upon the Council with respect to their electricity undertaking: ^{63 & 64 Vict. c. xlvi.}

And whereas it is expedient that further and better provision should be made for the health good government and improvement of the district and that the powers of the Council in regard thereto should be enlarged as in this Act provided:

And whereas it is expedient that the provisions in regard to the finances of the Council which are contained in this Act should be made:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

23 & 24 Geo. 5.
c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of sections 253 254 and 255 of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Felixstowe Urban District Council Act 1947.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Electricity.
- Part III.—Streets and buildings.
- Part IV.—Sewers drains &c.
- Part V.—Infectious disease and sanitary provisions.
- Part VI.—Human food.
- Part VII.—Public buildings parks &c.
- Part VIII.—Lands.
- Part IX.—Financial provisions.
- Part X.—Miscellaneous.
- Part XI.—General.

Incorporation
of Acts.
8 & 9 Vict.
c. 18.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART I.
—cont.
Interpretation.
26 Geo. 5. &
1 Edw. 8.
c. 49.

(2) In this Act unless the subject or context otherwise requires—

“ The district ” means the urban district of Felixstowe;

“ The Council ” means the urban district council of Felixstowe;

“ The county council ” means the county council of the administrative county of East Suffolk;

“ The electricity undertaking ” means the electricity undertaking of the Council for the time being authorised;

“ The electricity limits ” means the area within which the Council are for the time being authorised to supply electricity;

“ The clerk ” “ the surveyor ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the clerk the surveyor the medical officer of health and any sanitary inspector of the Council;

“ The Minister ” means the Minister of Health;

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and Part II of the Town and Country Planning Act 1944;

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same;

“ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

“ Child ” means a person under the age of sixteen years;

“ Food ” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938;

“ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction;

“ The Act of 1902 ” means the Felixstowe and Walton Improvement Act 1902;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the district;

PART I.
—cont.38 & 39 Vict.
c. 83.

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“ Authorised security ” means any mortgage stock or other security which the Council are for the time being authorised to grant create or issue or upon or by means of which the Council are for the time being authorised to raise money;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933;

“ Undertakings of the Council ” means the electricity undertaking of the Council and any other undertaking of the Council as from time to time existing and from which revenue is derived.

PART II.

ELECTRICITY.

Supply to
premises
partly without
electricity
limits.

5. The Council may supply electricity to any house or building which is partly within and partly outside the electricity limits in the same manner as if those premises were wholly within such limits:

Provided that the Council shall not supply electricity under this section to any such house or building within the limits of

any other authorised electricity undertakers without the consent of such undertakers which consent shall not be unreasonably withheld. Any question as to whether any such consent is unreasonably withheld shall be determined by the Electricity Commissioners.

PART II.
—cont.

6.—(1) Where the charges made by the Council for electricity supplied by them for one purpose are less than the charges made by them for electricity supplied for another purpose electricity supplied by the Council for the first-mentioned purpose shall not without the consent in writing of the Council be used (whether after transformation or conversion or not) for the last-mentioned purpose and if any person to whom any electricity is supplied uses it or suffers it to be used in contravention of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Use for one
purpose of
electricity
supplied for
another
purpose.

(2) Where a person is convicted of an offence under this section in respect of the use of electricity for any purpose the court may direct that all or any portion of the electricity which has been supplied to him by the Council within one year previous to the date when the proceedings were instituted at a rate of charge lower than the rate of charge appropriate for electricity supplied for the said purpose shall be charged for at the last-mentioned rate.

(3) For the purposes of this section electricity shall not be deemed to be used for lighting purposes by reason only that it is used for the purposes of some electrical apparatus which contains a lamp if the purposes of the apparatus as a whole are not lighting purposes.

7.—(1) The powers conferred on the Council by section 24 of the Electric Lighting Act 1882 of entering premises shall be extended as follows:—

Further
powers as to
entry upon
premises.

45 & 46 Vict.
c. 56.

(a) The premises which may be entered shall include all premises in the electricity limits in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Council;

(b) The purposes for which premises may be entered shall include the following purposes that is to say the inspection of all meters and electric fittings on the premises whether belonging to the Council or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders applying to the Council or of any regulation or byelaw made thereunder and (where the Council are authorised under the provisions of any such Act

PART II.

—cont.

Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply.

The Council shall not have any power of entry into any such premises except through an officer duly authorised by the Council who shall if so required produce his authority.

(2) Any person who shall refuse to admit any such officer of the Council to any premises which they are entitled to enter in pursuance of the said section 24 as amended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section as so amended shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section "electric fittings" includes electric lines meters accumulators fittings works and apparatus for the supply of electricity.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a house) belonging to and used by any railway company for the purpose of their railway and forming part of any station or goods depot.

Agreements
for supply of
electricity.

8. Notwithstanding anything in any Act or Order relating to the Council or the electricity undertaking the Council on the one hand and any authority company body or person (other than authorised distributors) to whom the Council are authorised to supply electricity on the other hand may enter into and carry into effect contracts or agreements for or with respect to the supply of electricity by the Council to such authority company body or person and at such price and on such terms and conditions as may be agreed and the Council may supply electricity accordingly:

Provided that the Council shall not in making any such contract or agreement show any undue preference to any such authority company body or person.

Provisions as
to supply of
electricity by
agreement.
62 & 63 Vict.
c. 19.

9. A consumer supplied with electricity by the Council under the terms of any agreement shall be deemed to be a person to whom the Council may be and are required to supply energy within the meaning of section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 And—

- (a) the provisions of that section shall apply to the supply afforded by the Council under such agreement;
- (b) any failure on the part of the Council to supply energy to such consumer under the agreement shall not render them liable for any damages occasioned

to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Council:

PART II.
—cont.

Provided that—

- (i) the provisions of this section shall not operate to deprive any consumer of electricity supplied by the Council under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions; and
- (ii) nothing in this section shall apply in relation to any agreement which expressly excludes the application of this section.

10. If any question shall arise under section 23 of the Electricity (Supply) Act 1922 as to whether a supply of electricity is demanded or received for the purpose of a stand-by supply only or as to whether a supply of electricity or of gas steam or other form of energy is in use or ready for use for the purposes for which a stand-by supply of electricity is required the same shall in default of agreement be determined by arbitration in manner provided by the Electricity (Supply) Acts 1882 to 1936.

For determining stand-by supplies.
12 & 13 Geo. 5.
c. 46.

11. The Council may refuse to supply electricity to any person from whom payment for the supply of electricity or meter rent is for the time being in arrear (not being the subject of a bona fide dispute) whether the payment be due to the Council in respect of the premises for which a supply is demanded or in respect of other premises.

Power to refuse to supply electricity in certain cases.

12. If the Council commence proceedings against any consumer for the summary recovery of any sum due for a supply of electricity any other sum due or payable to the Council by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of electricity or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of electricity provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

Recovery of sums due for electrical fittings &c.

13.—(1) Notwithstanding anything in section 7 of the Gasworks Clauses Act 1847 the Council may with the consent in writing of the owner of any building or any bridge over any street attach thereto such brackets electric lines and attachments (in this section called "attachments") as may be required for the purposes of the electricity undertaking.

Attachment of brackets &c. to buildings and bridges.
10 & 11 Vict.
c. 15.

PART II.
—cont.

(2) Where in the opinion of the Council any consent under subsection (1) of this section is unreasonably withheld they may make complaint to a court of summary jurisdiction who may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as they may think fit or disallow the attachments.

(3) The provisions of subsection (2) of this section shall not apply in relation to—

- (a) any building forming part of an aerodrome; or
- (b) any building which is designated in a list compiled or approved by the Minister of Town and Country Planning as being a building of architectural or historic interest or any building which the owner thereof alleges to be a building of architectural or historic interest; or
- (c) any building or bridge owned by any highway authority railway or canal company or gas undertakers;

but if in the opinion of the Council any consent under subsection (1) of this section is unreasonably withheld in relation to any such building or bridge they may appeal in the case of a building or bridge owned by any highway authority or railway or canal company to the Minister of Transport and in any other case to the Minister of Fuel and Power and the Minister of Transport or the Minister of Fuel and Power as the case may be may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as he thinks fit or disallow the attachments.

(4) Where any attachments have been affixed to a building or bridge under this section and the person who gave the consent or who was the owner when the order allowing the attachments was made ceases to be the owner of the building or bridge the subsequent owner may give to the Council notice in writing requiring them to remove the attachments and subject to the provisions of this subsection the Council shall within three months after the service of the notice remove the attachments:

Provided that the provisions of subsection (2) and subsection (3) of this section shall apply in relation to any such notice as they apply in relation to a refusal of a consent to the making of attachments.

(5) Where any attachments have been made under this section to any building or bridge the owner of the building or bridge may require the Council at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building or bridge.

(6) In this section—

PART II.
—cont.

The expression “owner”—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired means the occupier of the building;

(b) in relation to a building occupied under any other tenancy means the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent;

(c) in relation to a building forming part of an aerodrome means (notwithstanding anything in this subsection) the person having control of the aerodrome;

The expression “rack rent” means in relation to a building a rent which is not less than two-thirds of the full net annual value of the building;

The expression “aerodrome” means an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same. 10 & 11 Geo. 5.
c. 80.

14. In any case in which the proper and efficient supply of electricity necessitates the substitution of a new cable or other work situate in or upon the private property of a consumer the Council after giving forty-eight hours' notice in writing to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which such cable or work is laid or fixed may enter such house building or land between the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of effecting such substitution repairing all damage caused by such entry or substitution: Power of entry for substitution of cables &c.

Provided that the Council shall not exercise the powers of this section in respect of any premises which form part of the railway of the London and North Eastern Railway Company except with the consent of such company which consent shall not be unreasonably withheld.

15. For the purposes of section 13 of the Electric Lighting Act 1882 and section 12 of the schedule to the Electric Lighting (Clauses) Act 1899 in their application to the Council a county council shall be deemed to be a local authority. Removal of restriction on breaking up streets.

16.—(1) If the owner or occupier of any premises erected or in process of erection within the electricity limits on land abutting on any street laid out as such but not dedicated to Power to break up private streets.

PART II.
—cont.

public use or if so dedicated not repairable by the inhabitants at large applies to the Council for a supply of electricity to those premises then—

- (a) so much of any Act or Order applying to the Council as requires the consent of the person by whom the street is repairable to the breaking up by the Council of the street shall not have effect in relation to the street;
- (b) the Gasworks Clauses Act 1847 in its application to the Council shall have effect in relation to the land comprised in the street as if section 7 thereof had been excepted from incorporation with the Acts and Orders applying to the Council; and
- (c) except in the case of such streets as are referred to in subsection (2) of this section the authority who would be responsible for the maintenance and repair of the street if it were repairable by the inhabitants at large shall have the like rights under section 15 of the schedule to the Electric Lighting (Clauses) Act 1899 as are thereby conferred on the person by whom the street is repairable.

(2) Nothing in this section shall authorise the breaking up by the Council of any street which is repairable by a railway or canal company unless the consent in writing of such company is obtained by the Council but such consent shall not be unreasonably withheld.

(3) Any question arising under subsection (2) of this section as to whether or not a consent is unreasonably withheld shall be determined by the Minister of Transport.

Penalty for
interference
with works.

17. If any person without lawful excuse (the proof whereof shall lie on him) shall wilfully interfere with any electric line or other work or apparatus used for or in connection with the supply of electricity by the Council or do or cause to be done anything which is calculated to interfere with or damage any such work or apparatus he shall for every such offence (without prejudice to any other liability or cause of action which may arise out of or by reason of such act) be liable to a penalty not exceeding five pounds.

Interference
with works
with intent
to cut off
supply of
electricity.

18.—(1) Any person who unlawfully and maliciously cuts injures or tampers with any electric line or work of the Council with the intent to cut off or injuriously affect the supply of electricity by the Council shall be guilty of a misdemeanour and be liable on conviction on indictment to imprisonment for any term not exceeding two years but nothing in this section shall exempt the person from any

proceeding for any offence which is punishable under any provision of the Electricity (Supply) Acts 1882 to 1936 or of the Electric Lighting (Clauses) Act 1899 or under any other Act or the common law but so that no such person be punished twice for the same offence.

(2) The Electric Lighting Act 1882 in its application to the Council shall be read and have effect as if section 22 of the said Act were hereby repealed.

19.—(1) The provisions of section 38 of the Gasworks Protection of seals &c. belonging to Council. 34 & 35 Vict. c. 41. Clauses Act 1871 (incorporated with the Electric Lighting Act 1882) shall apply to any person who wilfully fraudulently or by culpable negligence injures or detaches or suffers to be injured or detached any of the sealing or locking devices attached to any sealed or locked receptacle meter or apparatus inserted by the Council in any electric line within a consumer's premises or opens or suffers to be opened any such sealed or locked receptacle meter or apparatus.

(2) If any person accidentally injures or detaches or suffers to be injured or detached any such sealing or locking device as aforesaid he shall within forty-eight hours of such injury or detachment give notice in writing thereof to the Council and any person who fails to comply with the provisions of this subsection shall be liable to a penalty not exceeding five pounds.

20.—(1) The Council may for the purpose of preventing fire in or any injury to any building or premises supplied or proposed to be supplied with electricity by them or injury to any person make byelaws—
Byelaws as to wires apparatus and fittings.

(a) with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply; and

(b) with respect to the charging of accumulators;

and may refuse to supply electricity or cut off and discontinue the supply of electricity to any building or premises in which such byelaws are not complied with.

(2) No byelaw made under this section shall apply to or in respect of any building or premises to which the Factories Act 1937 applies or to any premises (not being a house) belonging to a railway company and used by them for the purposes of their undertaking. 1 Edw. 8. & 1 Geo. 6. c. 67.

PART II.

—cont.

Period of
error in
defective
meters.

21.—(1) Where a meter supplied by the Council is found on a test to register erroneously to a degree exceeding the degree permissible as respects meters of the class to which the meter belongs it shall in the absence of agreement to the contrary be deemed to have registered erroneously to the degree so found from the penultimate date on which the register of the meter was ascertained before the date on which the meter was tested or removed for the purpose of the test except in a case where the meter is proved to have begun to register erroneously as aforesaid on some date after such penultimate date.

(2) The amount of the allowance to be paid to or the surcharge to be made upon such person by the Council shall be paid by or to the Council as the case may be and in the case of a surcharge shall be recoverable in the like manner as charges for electricity are recoverable.

(3) The Council shall notify the consumer at least forty-eight hours in advance of any test of his meter and shall notify the consumer of the result of the test.

(4) Nothing in this section shall affect the rights of the Council under section 38 of the Gasworks Clauses Act 1871 (which relates amongst other things to the injuring of meters).

Fraudulent
abstraction
of electricity.

22. Any person who for the purpose of operating any prepayment meter through which electricity is supplied to him or to premises occupied by him frequently or habitually uses any thing other than the coin of the realm by which such prepayment meter is designed and intended to be operated shall be liable to a penalty not exceeding five pounds.

Minimum
charge for
electricity.

23. The minimum charge per quarter which is specified in the Fourth Schedule to the Felixstowe Electricity (Extension &c.) Special Order 1928 as for the time being revised by any order of the Minister of Fuel and Power shall if so required by the Council be paid to them by the occupier of any premises connected to a distributing main of the Council in respect of each quarter of any year during the whole or any part of which quarter such premises are so connected whether electricity has actually been consumed on such premises or not during the currency of such quarter:

Provided that nothing in this section shall affect the operation of the Electricity Minimum Charges Orders and General Directions 1942 and 1944 (or any modification thereof) made and given by the Minister of Fuel and Power under regulation 56 of the Defence (General) Regulations 1939 as the said regulation has effect under the Supplies and Services (Transitional Powers) Act 1945.

9 Geo. 6.
c. 10.

24.—(1) A notice to the Council from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

PART II.
—cont.

Notice to
discontinue
supply of
electricity.

(2) Notice of the effect of this section shall be endorsed on any demand note for electricity.

25. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with the electricity undertaking.

Service of
electricity
demand notes.
15 & 16 Geo. 5.
c. 90.

26. The Council may if they think fit make an allowance by way of discount on all sums of money due to them for the supply of electricity from any person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Council shall allow such discount) be endorsed on every demand note in respect of such charges:

Discounts
for prompt
payment.

Provided that the Council shall make the same allowance to all consumers under similar conditions.

PART III.

STREETS AND BUILDINGS.

27.—(1) The Council may enter into and carry into effect agreements with persons having a legal interest in lands adjoining any street for the adjustment of the boundary of any such street within the district and for such purpose may give land including land forming part of the street in exchange for other land. For the purposes of this section the Council shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

Adjustment
of boundaries
of streets.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the district and during such period of one month any four inhabitant householders of the district by themselves or their agent or the county council if the street is a county road may appeal to a court of summary jurisdiction against the proposals and subsections (2) to (7) of the section of this Act of which the marginal note is "As to appeals" shall apply to any such appeal as if the proposals were a decision of the Council.

PART III.
—cont.41 & 42 Vict.
c. 76.

(3) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street. Provided that if the Council or any person in whom such site is vested desires that such telegraphic line should be altered the enactments of section 7 of the Telegraph Act 1878 shall thereupon apply in all respects as though the Council or the said person (as the case may be) were undertakers within the meaning of the said Act.

(4) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any lands of the Council in any case in which such consent would have been required if this Act had not been passed.

Adjustment
of boundaries
of estates.

28.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Council for approval the Council may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Council and the respective persons interested in such estate or lands be determined on the application of the Council or any such person by an arbitrator to be appointed by the Minister and the Council may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid:

Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to

such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Council.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Council may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Council may think reasonable.

29.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor cycle) in passing to and from such premises the Council may either—

Crossings for horses or vehicles over footways.

(a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or

(b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Council may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Council require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing from the owner or occupier.

PART III.
—cont.

(3) If the Council allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor cycle) subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

7 Edw. 7.
c. 53.

(4) Notwithstanding the provisions of section 18 of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Council for an estimate of the cost thereof and after having obtained such estimate may deposit with the Council the amount thereof. When such deposit shall have been made the Council shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Council by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Council under this section.

Power to
place fences
near school
entrances &c.

30. For the purpose of preventing danger to pedestrians from traffic the Council may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools public baths public parks recreation grounds playing fields alleyways and passage-ways exercise the like powers of placing fences rails and posts on the sides of any footways or carriageways of such roads as under section 149 of the Public Health Act 1875 are exerciseable by them as respects roads so repairable and the Council may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

Fencing of
forecourts.

31.—(1) In any case in which the forecourt of any premises adjoining a street or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not is or are a source of danger obstruction or inconvenience to the public the Council may require the owner of the premises well and sufficiently to fence such forecourt from the street.

(2) Any person who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

32.—(1) If the Council shall by resolution determine that any stall structure or other erection on any forecourt is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

33.—(1) Before any person shall erect on any land within the district a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street he shall submit to the Council plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as may be approved by the Council.

As to erection
of retaining
walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Council requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Council be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not extend or apply to any land belonging to or which may hereafter be acquired by a railway company or to any retaining wall erected thereon.

34.—(1) It shall be lawful for the owner or occupier of any property with the consent in writing of the Council to construct in any pavement forming part of any street in the district any means (in this section referred to as "pavement lights") for the admission of light or air through such pavement to any room or premises situate under or adjoining the same.

As to
pavement
lights.

(2) In giving their consent to the construction of any pavement lights the Council may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Council with any person prior to the passing of this Act which would have been

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—cont.

valid under the provisions of this section if made after the passing thereof are hereby confirmed.

Compensation
for injuring
lamps &c.

35. Every person who negligently breaks throws down or otherwise damages any public lamp or lamp post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or life-saving apparatus or any other property of the Council shall make full compensation to the Council for the damage done and such compensation to an amount not exceeding twenty pounds may (without prejudice to any other right or remedy of the Council) be recovered summarily as a civil debt.

Signs over
streets.

36.—(1) In this section “sign” means any banner streamer notice board sign or lettering for the purposes of advertisement or announcement (including the supports thereof) which is suspended or extends for more than two feet over any street or which extends for more than six inches over any street and is more than two feet six inches in height from the top to the bottom thereof.

(2) (a) If it appears to the Council that any sign which is placed over any street at the date of the passing of this Act is a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street over which it is placed they may by notice in writing require the owner of or person responsible for the placing of such sign to remove it or to comply with such conditions as may be specified in the notice within such period not being less than seven days as may be specified in the notice.

(b) For a period of two years from the passing of this Act the foregoing provisions of this subsection shall not apply to any sign which was in use on the first day of November one thousand nine hundred and forty-six.

(3) (a) After the date of the passing of this Act no person shall without the consent of the Council place any sign over any street.

(b) The consent of the Council under this subsection shall not be withheld except on the ground that in their opinion the sign would be a source of danger or objectionable by reason of its size construction or situation or an injury to the amenities of the street and such consent may be given subject to such conditions as the Council may think fit.

(4) Any person who (a) neglects or refuses to comply with the requirement of any such notice as is referred to in subsection (2) of this section or (b) after the date of the passing

of this Act places any sign over and without the consent of the Council or without compliance with any conditions attached to any such consent shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings and the Council may remove such sign and any expense incurred by them in so doing shall be recovered by them from such person.

37.—(1) Any person erecting setting up or placing a blind shade covering or awning over a shop or premises or erect set up or place the same that no part of the same shall project over any part of the footway which is less than six inches from the outer edge of the kerb.

(2) Every such blind shade covering shall be constructed and maintained so as to secure the convenience of the public.

(3) Every person who shall offend against the provisions of this section shall be liable to a penalty of forty shillings and to a daily penalty not exceeding ten shillings.

38.—(1) Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of section 3 of the Public Health (Buildings in Streets) Act 1888 in its application to the district be deemed to be a house or building within the meaning of those words where they first occur in the said section.

(2) It shall not be lawful without the written consent of the Council to place any tent van shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access or which is required by law to be left free from obstructions.

(3) Any person who offends against the provisions of subsection (2) of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

39.—(1) (a) No wall fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street shall be erected or brought forward on any land in any street—

- (i) beyond any building line prescribed by the Council in respect of the land under the provisions of any Act; or

There be no such line beyond any line which is enforceable by the Council for buildings under subsection (2) of section 140 of the Housing Act 1936;

There be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds or a daily penalty not exceeding forty shillings and the Council may take down or remove any structure in contravention of those provisions and recover the costs incurred by them in so doing from the offender.

The Council may by notice in writing require the occupier of any land upon which any structure in contravention of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Council shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Council given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may at their own expense take down or remove and if required by the owner or occupier shall re-erect so as not to contravene the provisions of subsection (1) of this section any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a movable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

(4) The provisions of this section shall not apply to any wall erected on land belonging to a railway company so long as such land is used by such company primarily for railway purposes.

40.—(1) For the purpose of preserving the amenities of the district it is hereby enacted that it shall not be lawful after the passing of this Act to erect in or within fifteen feet of any street in the district any hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Council may determine.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The consent of the Council under this section shall not be required for a hoarding or similar structure erected within any railway station or upon any property of a railway company for the purposes of such company except in so far as such hoarding or similar structure fronts upon a street repairable by the inhabitants at large.

41.—(1) Before placing or erecting any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street the person proposing to place or erect such hoarding wall or fence shall give notice of his intention so to do to the Council and such notice shall be accompanied by plans and particulars of the hoarding wall or fence proposed so to be placed or erected.

As to erection
of hoardings
&c. at street
corners.

(2) If the placing or erection of such hoarding wall or fence would constitute a danger to the traffic in the streets upon adjoining or near to which the same is proposed to be placed or erected by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic the Council may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice the Council shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be

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—cont.

liable to a penalty not exceeding five pounds and the Council may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(4) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

15 & 16 Geo. 5. (5) The provisions of this section shall not apply to any
c. 68. part of a street with respect to which restrictions have been
25 & 26 Geo. 5. imposed under section 4 of the Roads Improvement Act 1925
c. 47. or by section 1 or section 2 of the Restriction of Ribbon
Development Act 1935.

Repair of
hoardings
&c.

42.—(1) The Council may by notice in writing require—

- (a) the owner of any hoarding wall or similar structure used for advertising purposes to maintain the same in good order and condition;
- (b) the person using any hoarding wall or similar structure for advertising purposes to maintain any advertising matter thereon in good order and condition.

(2) If such owner or other person shall neglect or refuse to comply with any such notice the Council may carry out such alterations or repairs as may be reasonably necessary and recover summarily as a civil debt from such owner or other person any expense incurred by them in so doing.

Elevation of
buildings
erected on
front lands
to require
approval.

43.—(1) Where by reason of any improvement made by the Council in the district any land shall become land which adjoins or abuts on any street the following provisions shall apply:—

(i) If the owner lessee or occupier of any such land shall construct—

(a) any door or entrance in an existing building communicating with that street; or

(b) any wall or fence by the side of that street; he shall construct the door entrance wall or fence in such position and in accordance with such elevations as may be approved by the Council;

(ii) If the Council within one month after particulars of position and elevations shall have been submitted to them under this section shall have failed to notify their determination in writing to the person submitting the same the Council shall be deemed to have approved of the position and elevations.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Council shall make compensation to the owner of any land for any loss or damage he may suffer by reason of the setting back or bringing forward of any wall or fence under the provisions of this section.

(4) This section shall not apply to any street which for the time being is subject to restrictions under the Restriction of Ribbon Development Act 1935.

44.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Council that a highway within the district is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the district can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted: Stopping up
and diversion
of highways.

Provided that the Council shall not make an application under this section in regard to a road vested in the county council without the consent of the county council which shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by the Minister of Transport.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

(a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on the owners or reputed owners and the occupiers of all land abutting on the highway and (when the application relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport and the county council; and

19 & 20 Geo. 5.
c. 17.

(b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the

PART III.
—cont.

highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the district.

(4) On the hearing of such an application the Council and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Council or by any such person as aforesaid who was or claimed to be heard by the court.

42 & 43 Vict.
c. 49.
23 & 24 Geo. 5.
c. 38.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

- (a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;
- (b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;
- (c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever.

(7) Provided that—

- (i) nothing in this section shall authorise the diversion over any land of any highway unless the written consent of every person having a legal interest in that land is produced to and deposited with the court; and
- (ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted

for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace for the county of East Suffolk.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable.

(10) Any application or order under this section—

(a) may include two or more highways which are connected with each other;

(b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle way or footway.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

45.—(1) Every house erected after the passing of this Act shall be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Food storage accommodation to be provided.

(2) Every existing house and every house the erection of which was commenced but not completed before the passing of this Act shall where reasonably practicable be provided with sufficient and suitable accommodation for the storage of food and any owner who shall occupy or allow to be occupied any such house which can reasonably be so provided but which is not so provided after one month's notice from the Council requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

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—cont.

Power to
order
alteration of
chimneys.

46. It shall be lawful for a court of summary jurisdiction upon complaint by the Council in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a washhouse or outbuilding forming part of or in proximity to a house in the district is a nuisance to any of the inhabitants of the district to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Height of
chimneys.

47.—(1) Every chimney erected in the district after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice in writing given by the Council to the owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Council shall reasonably require having regard to the use of such chimney the position of houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Council may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement:

Provided that before exercising the powers conferred by this section in relation to any chimney situated within one mile of an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating that Act the Council shall obtain the consent of the Minister of Civil Aviation.

(2) Any person who shall offend against any provision of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Sanitary
conveniences
for workmen.

48.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 or section 108 of the Factories Act 1937 applies shall where practicable and if required by the Council provide to the reasonable satisfaction of the Council and until the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection

with such work as may be sufficient for the accommodation of the workmen employed.

PART III.
—cont.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

49.—(1) The Council may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

Further powers as to future line of street.
15 & 16 Geo. 5.
c. 71.

(2) The owner may and if so required by the Council shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Council under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Council under this section the Council shall make compensation to any owner lessee or tenant of any such building or erection for any loss or damage sustained by him in consequence of such requirement being complied with.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

50.—(1) Every person who intends to lay out a new street shall in addition to the information required to be supplied to the Council by virtue of any enactment or byelaw with respect to streets and buildings from time to time in force in the district distinctly define and mark on a plan drawn to

Frontage line in new streets.

PART III.
—cont.

such scale as the Council may require and to be prepared and submitted by such person to the Council for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Council shall be deemed to have approved any building line unless within one month after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

(2) The Council may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them or by any highway authority) already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Council or before the expiration of the one month aforesaid without their approval nor without the approval of the Council beyond or in front of the building line approved or prescribed by the Council and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Council.

(5) In the event of the Council requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the byelaws with respect to streets and buildings in force in the district or of the Public Health (Buildings in Streets) Act 1888 the Council shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Council determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

51.—(1) Where plans and sections of a new street have been deposited with and approved by the Council no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for any person except with such consent to erect the building or any fence nearer to the centre of the street than the posts or other marks by which the width of the street has been defined.

No building
allowed until
street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

52.—(1) Any person who lays out or intends to lay out a new street or part of a new street shall before any building is begun to be erected abutting on such new street or part of a new street if required by the Council so to do construct the carriageway of such new street or such part of the new street as may be required by the Council in accordance with the byelaws for the time being in force with respect to new streets and shall also if required sewer such street or such part of such street:

No building
to be erected
until street
formed.

Provided that where any new street is or is intended to be constructed of a length exceeding one hundred yards the Council shall not be empowered to require such new street to be constructed in its entire length by one operation but such new street may be constructed in parts and in such event nothing in this section shall prevent the erection of a new building abutting on any part of such street in reference to which the foregoing provisions of this section have been complied with.

(2) The execution of any works under the provisions of this section shall not relieve any person of any liability under section 150 of the Public Health Act 1875 or under the Private Street Works Act 1892 or under the local Acts for the time being in force in the district.

55 & 56 Vict.
c. 57.

(3) Any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

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—cont.

Rounding of
corners at
street
junctions.Amendment
of section 17
of Public
Health Acts
Amendment
Act 1907.For protection
of Postmaster-
General.

53. The powers conferred upon the Council by section 17 of the Public Health Acts Amendment Act 1907 to vary the intended position of a new street so far as is necessary for the purpose of securing more direct easier or more convenient means of communication with any other street or intended street shall be extended so as to enable them (subject to the provisions of that section) to require that the corners formed at the junction of a new street with another street (whether new or existing) shall for the purposes of safety be rounded off so as to be coincident with the arc of a circle tangential to the adjacent boundaries of the two streets and having such radius as may be determined by the Council.

54. Section 17 (Power to vary position or direction and to fix beginning and end of new streets) of the Public Health Acts Amendment Act 1907 shall in its application to the district be read and have effect as if subsection (2) of the said section were omitted therefrom.

55.—(1) Where any highway or portion of a highway is stopped up in pursuance of an order made under the section of this Act whereof the marginal note is “Stopping up and diversion of highways” the following provisions shall unless otherwise agreed in writing between the Council and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up:—

- (a) The power of the Postmaster-General to remove the line shall be exerciseable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exerciseable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Council of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Council in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Council the expense of providing in substitution for the line and any telegraphic line connected

therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;

- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Council and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of any highway has been stopped up the Council shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) If in relation to the works authorised by the section of this Act whereof the marginal note is " Rounding of corners at street junctions " (which said section is hereinafter referred to as " the specified section ") the Council require an alteration either temporarily or permanently in any telegraphic line belonging to or used by the Postmaster-General the enactments numbered (1) to (8) in section 7 of the Telegraph Act 1878 shall apply with respect to such alteration.

(4) If in consequence of the exercise or intended exercise by the Council of the power conferred on them by the specified section the Postmaster-General considers it necessary or expedient that an alteration should be made in any telegraphic line belonging to or used by him and placed in any highway affected by the exercise or intended exercise by the Council of the said power the Postmaster-General may himself make such alteration in such telegraphic line as he deems necessary or expedient and the Council shall pay to the Postmaster-General all the expenses incurred by him in respect of such alteration and the amount of any loss or damage sustained by him in consequence thereof:

Provided that—

- (a) before making such alteration the Postmaster-General shall give a notice to the Council containing particulars of the telegraphic line to be altered and of the nature of the alteration he intends to make;
- (b) the Council may within fourteen days of the receipt of the notice give to the Postmaster-General a notice objecting to the alteration on the ground that it is unnecessary or unreasonable and thereupon a

PART III.
—cont.

difference shall be deemed to have arisen and sections 4 and 5 of the Telegraph Act 1878 shall apply accordingly and the tribunal by which the difference is determined may make such order as it thinks just as to the alteration (if any) to be made in the telegraphic line and as to the manner in which the proposed work of the Council is to be carried out.

(5) Expressions in this section have the same meaning as in the Telegraph Act 1878.

Planting of
trees in
private streets.

56. The Council when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Council under this section shall be deemed part of the expenses of carrying out the private street works in any such street:

Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Council shall be deemed to be the undertakers.

As to evasion
by owners of
private street
works
expenses.

57. If—

- (1) any owner of land fronting adjoining or abutting on a street within the meaning of section 150 of the Public Health Act 1875 and situate in the district conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (2) any expenses of works executed by the Council under the said section 150 in or in relation to that street are apportioned on such part or portion of that land; and
- (3) the Council are unable to recover such expenses in whole or in part from the person to whom such part

or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and

- (4) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under section 150 of the Public Health Act 1875;

then such expenses or so much thereof as has not been recovered by the Council may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under section 150 of the Public Health Act 1875 may be recovered as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

58. Where in the opinion of the Council repairs the cost of which will not exceed fifty pounds are required in the case of any street not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Council may execute such repairs as they deem necessary and may themselves pay such cost and the execution of such repairs and the payment of such cost shall not prejudice or affect any statutory provisions for the time being in force relating to private street works and private improvement expenses or similar matters or of section 19 of the Public Health Acts Amendment Act 1907.

As to urgent repairs of private streets.

59.—(1) At any time within one month after the deposit of the plans of any new building intended or adapted for use as a house (or where such plans have been approved but the erection of the building has not been begun before the passing of this Act at any time before the erection thereof has been commenced) the Council may by notice in writing require the provision either before the building is erected or before it is sold let or occupied (as the Council shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws or other provisions for the time being in force with respect to new streets.

Means of access to buildings.

(2) If it appears to the Council to be necessary that the means of communication to be provided under this section shall be in the form of a street the Council may by their notice require a new street to be laid out and if the construction of such means of communication appears to them necessary they may by their notice require constructional work in

PART III.
—cont.

connection with such means of communication not exceeding that required for a new street by the byelaws or other provisions in force with respect to the construction of new streets.

(3) Where notice of a requirement under this section has been given by the Council to any person such person shall not begin to erect or proceed with the erection of any building to which the notice relates nor sell let or occupy such building (as the notice shall specify) until the notice of the Council has been complied with or until security has been given to the satisfaction of the Council that the notice will be complied with.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Cellars not
to be
constructed
below subsoil
water level.

60.—(1) The Council may prohibit the construction in or in connection with any house within the district of any cellar or room the floor level of which shall be lower than the ordinary level of the subsoil water on under or adjacent to the land on which such house shall be erected.

(2) Any person offending against any prohibition of the Council under the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Closet
accommoda-
tion in houses
occupied by
more than
one family.

61. Section 44 of the Public Health Act 1936 shall with the necessary modifications apply to a part of a house within the district occupied by a separate family as it applies to the whole of a house.

Restriction on
erection of
stands &c.

62.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Council a plan and section thereof and shall comply with such conditions as the Council may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon.

(2) Any person aggrieved by any conditions prescribed by the Council under subsection (1) of this section may appeal in accordance with the section of this Act whereof the marginal note is "As to appeals":

Provided that pending the determination of such appeal twenty or more persons shall not be admitted to such stand or structure unless the conditions prescribed by the Council have been complied with.

(3) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding forty shillings.

PART III.
—cont.

(4) The provisions of this section shall not apply to any stand or structure erected by a person who is the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

63.—(1) In this section—

As to
neglected sites.

“ neglected site ” means the site of a demolished building in the district which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood;

“ owner ” in relation to a neglected site means a person other than a mortgagee not in possession who is for the time being entitled to dispose of the fee simple of the neglected site whether in possession or in reversion and includes also a person holding or entitled to the rents and profits of the neglected site under a lease or agreement the unexpired term whereof exceeds three years.

(2) A court of summary jurisdiction on complaint by the Council may order the owner of any neglected site to remove any rubbish resulting from the demolition of the building within a reasonable time to be fixed by the order.

(3) If the order is not obeyed within the time thereby prescribed the Council at any time after the expiration of such time may enter upon the neglected site and execute the order.

(4) All expenses incurred by the Council under subsection (3) of this section in relation to a neglected site may be recovered by the Council from the owner of the neglected site in a summary manner.

64.—(1) Every undertaking or agreement under seal expressed to be made in pursuance of this section and given by or to the Council to or by the owner of any legal estate in land or property on the passing of plans or otherwise in connection with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Council and such owner or his successor in title or person claiming through or under him shall be entitled to require from the Council a copy of such undertaking or agreement.

Undertakings
to bind
successive
owners.

PART III.

—cont.

15 & 16 Geo. 5.
c. 22.

(2) Any such undertaking or agreement of such owner shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Any such undertaking or agreement of such owner shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

Saving for
railway
companies.

65. Nothing contained in the sections in this Part of this Act of which the marginal notes are—

“ Elevation of buildings erected on front lands to require approval ”;

“ Height of chimneys ”;

“ Frontage line in new streets ”; and

“ As to urgent repairs of private streets ”;

shall extend or apply to any building (not being a house or building used as offices other than a building so used which forms part of a railway station) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by such company with the authority of Parliament so long as any such building railway work or land is used or held by the railway company primarily for railway purposes.

For protection
of Ipswich
Gas Company.

66. For the protection of the Ipswich Gas Company (in this section referred to as “ the company ”) the following provisions shall unless otherwise agreed in writing between the Council and the company apply and have effect (that is to say):—

(1) In this section “ apparatus ” means mains pipes meters and other works and apparatus belonging to the company and “ position ” includes depth:

(2) If it shall be agreed between the Council and the company or (in case of difference) determined by arbitration that in consequence of—

(a) the giving up under the powers of the section of this Act of which the marginal note is “ Adjustment of boundaries of streets ” of land forming part of a street; or

(b) the stopping up or diversion under an order made pursuant to the section of this Act of which the marginal note is “ Stopping up and diversion of

highways ” of any highway or any length of a highway; or

(c) the addition to the carriageway of a street under the powers of the section of this Act of which the marginal note is “ Rounding of corners at street junctions ” of any portion of a footway or (in the case of apparatus erected laid or placed on or above the surface of the ground) the addition to the footway of a street under the powers of that section of any portion of a carriageway; or

(d) the construction under the powers of the section of this Act of which the marginal note is “ Crossings for horses or vehicles over footways ” of a carriage-crossing across the footway of any street or the allowance under the powers of that section of the use as a crossing for any horse or horse-drawn or mechanically propelled vehicle of the footway of any street;

in under upon or over which any apparatus is situate it is reasonably necessary that any apparatus should be removed or diverted or that the position of any apparatus should be altered or that works (hereinafter referred to as “ protective works ”) for the protection of any apparatus should be executed the company may and (if so required by the Council) shall remove or divert or alter the position of or execute protective works in respect of the apparatus according as and in such manner as may be agreed or determined by arbitration and the Council shall repay to the company the amount of the costs and expenses reasonably incurred by the company in or in connection with such removal diversion or alteration or the execution of such protective works (which costs and expenses are hereinafter referred to as “ the said expenses ”):

Provided that if in carrying out any such diversion or alteration of position or the execution of protective works—

(A) (i) the company erect lay or place new apparatus in substitution for their existing apparatus; and

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the diversion or alteration of position of the apparatus or the execution of such protective works; and

PART III.
—cont.

(iii) the date at which the existing apparatus would have required to be renewed is deferred by reason of the erection laying or placing of the new apparatus or the execution of protective works or

(B) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of improved apparatus; or

(ii) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) than those of the existing apparatus; or

(iii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which it is agreed or determined by arbitration that such greater depth is reasonably necessary in consequence of the addition to the carriageway of a street of part of the footway or of the construction of a carriage crossing across the footway of a street or of the allowance of the use of the footway of a street as a crossing for any horse or horse-drawn or mechanically-propelled vehicle;

the company shall themselves bear (in the case referred to in paragraph (A) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the company resulting from such deferment as is referred to in subparagraph (iii) of the said paragraph (A) and (in the case referred to in paragraph (B) of this proviso) such proportion of the said expenses as represents the amount of such enhancement as is referred to in that paragraph except to the extent of any part of such amount which may be borne by the company under paragraph (A) of this proviso:

Provided also that where the apparatus had been laid or constructed in under upon or over the part of the street highway or footway affected within the period of two years immediately preceding the giving of the relevant notice required by subsection (4) of this section and at the time of the laying or construction of that apparatus the Council had given to the company warning in writing of their intention of exercising the powers necessitating the removal or diversion or alteration of position of the apparatus or the execution of protective works with a statement of the manner in which and the extent to which they intended to exercise such powers no part of the said expenses shall be repayable by the Council if the

said powers are exercised by the Council in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the company:

- (3) Notwithstanding the giving up under the powers of the section of this Act of which the marginal note is "Adjustment of boundaries of streets" of land forming part of a street or the stopping up or diversion under an order made pursuant to the section of this Act of which the marginal note is "Stopping up and diversion of highways" of any highway or any length of a highway in under upon or over which street or highway or length of a highway any apparatus is situate the company shall (unless the apparatus is removed or diverted under the provisions of subsection (2) of this section or unless new apparatus has been laid in substitution therefor) continue to have the same powers and rights in respect of such apparatus as if the land in under upon or over which the same is situate had continued to be part of the street or highway:
- (4) The Council shall give to the company not less than twenty-eight days' notice in writing of their intention to exercise any of the powers referred to in subsection (2) of this section with respect to land forming part of a street or to any portion of a street footway or highway in under upon or over which any apparatus is situate and such notice shall be accompanied by a plan and (in the case of the addition of part of the footway to the carriageway) a section showing the nature and extent of the proposals in so far as they relate to any such land or portion of a street footway or highway as aforesaid:
- (5) If within twenty-eight days after the receipt from the Council of any notice under subsection (4) of this section of their intention to exercise any such powers as are referred to in that subsection the company give to the Council notice in writing of their intention (otherwise than by the requirement of the Council) to remove or divert or alter the position of or to execute protective works in respect of any apparatus affected by the exercise of such powers and at the same time deliver to the Council a plan section and particulars of any such diversion or alteration of position or particulars of any such protective works (as the case may be) the Council shall not exercise the powers referred to in the notice given by them as aforesaid until—

PART III.
—cont.

(a) it shall have been agreed between the Council and the company or settled by arbitration whether such intended removal diversion or alteration of position of apparatus or the execution of such intended protective works is reasonably necessary; and

(b) the plans sections and particulars of any diversion or alteration of position to be carried out or the particulars of any protective works to be executed have been so agreed or settled:

Provided that if the proposals contained in any notice given to the Council by the company under this subsection and any plans sections or particulars delivered to the Council with such notice are not disapproved by the Council within twenty-eight days after the receipt thereof the said proposals shall be deemed for the purposes of this section to be reasonably necessary and the Council shall be deemed to have approved such plans sections or particulars:

- (6) Forthwith after the completion of any such removal or diversion or alteration of position of apparatus or of any such protective works the company shall if reasonably required by the Council fill in the excavation and make good the surface of the ground to the reasonable satisfaction of the Council:
- (7) Any difference between the Council and the company under this section shall be referred to arbitration.

PART IV.

SEWERS DRAINS &C.

Separate
sewers for
sewage and
surface water.

67. For the purpose of facilitating the disposal of surface water and sewage the powers of the Council under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in the district to provide separate sewers for the reception of surface water and of sewage respectively.

Water from
buildings &c.
to be
conveyed to
sewers.

68.—(1) The powers of the Council under section 21 of the Public Health Act 1925 shall extend to authorise them to require the execution and maintenance of such works as may be necessary to convey surface water from premises to which that section applies to some drain sewer or watercourse or the disposal of such surface water in such other manner as the Council may require.

(2) It shall be the duty of all owners of land or premises to provide lay and keep in repair such gutters drains channels and other works as may be requisite for complying with section 21 of the Public Health Act 1925 as amended by this section and for the purpose of laying and repairing the same the owner of any land or premises may take up so much of any street as may be requisite and such gutters drains channels and other works shall be laid and thereafter kept in good repair and condition and the street shall be reinstated under the direction of the surveyor and all damage occasioned to the street shall be made good by such owner to the satisfaction of the surveyor.

(3) In the event of default on the part of the owner of any land or premises to comply with the provisions of subsection (2) of this section the Council may execute any necessary work and recover the cost of so doing from such owner.

69. Section 81 of the Public Health Act 1936 shall extend to empower the Council to make byelaws for preventing slop water from any house or premises from being discharged or thrown or suffered to be discharged or thrown or to pass into any street gully in the district. Byelaws as to throwing slop water into street gullies.

70.—(1) Where the Council resolve to construct a sewer in a street or part of a street within the district repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Council increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the provisions of the section of this Act whereof the marginal note is "Provisions applicable to the last two preceding sections" the expenses incurred by the Council in constructing the sewer so far as they do not exceed the sum authorised by that section shall be apportioned by the Council on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative. Apportionment to frontagers of expenses of sewer constructed under public highway.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published in a local newspaper circulating in the district but shall become operative as from the date of such publication. Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Council and the owner of the land.

PART IV.
—cont.

Apportionment to frontagers of expenses of construction of sewer before land became a street.

71.—(1) Where the Council have incurred expenses in constructing after the passing of this Act a length of sewer in or under land within the district and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section of this Act the expenses so incurred so far as they do not exceed the sum authorised by that section shall be apportioned by the Council on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in on or over which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any sum was set off against such compensation on account of the value of land belonging to such owner having been enhanced by the construction of the length of sewer this section shall not apply to the length of sewer or to such part thereof as was constructed in on or over such land as aforesaid.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Council and the owner of the land.

Provisions applicable to the last two preceding sections.

72.—(1) The sum apportionable under either of the two last preceding sections of this Act shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the district multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

(2) As soon as the apportionment has been made the Council shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(3) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(4) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date when the resolution became operative or the street was laid out (as the case may be) the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

For the purposes of this subsection—

- (a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;
- (b) any such re-erection alteration or extension of a building as is mentioned in the Third Schedule to the Restriction of Ribbon Development Act 1935 shall be deemed to be the erection of a new building. Provided that references in the said schedule to the date on which the restrictions came into force shall for the purposes of this subsection be construed as references to the date when the resolution became operative or the street was laid out as the case may be.

(5) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(6) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(7) Where such a resolution as is mentioned in the section of this Act whereof the marginal note is "Apportionment to frontagers of expenses of sewer constructed under public highway" has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

(8) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of

PART IV.
—cont.

the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Council or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(9) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Council from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

As to evasion
by owners of
sewerage
expenses.

73. If on a complaint by the Council to a court of summary jurisdiction it is proved to the satisfaction of the court—

- (i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and
- (ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of sewer constructed under public highway" or as the case may be of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of construction of sewer before land became a street"; and
- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said sections of this Act;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and

interests therein to the same extent and in the same manner as any sum apportioned under either of the said sections of this Act of which the marginal notes are "Apportionment to frontagers of expenses of sewer constructed under public highway" and "Apportionment to frontagers of expenses of construction of sewer before land became a street" may be recovered and is charged on the premises under the said last preceding section of this Act.

PART IV.
—cont.

74. Where any new building contains two or more flats or separate dwellings or any old building is after the date of the passing of this Act converted into two or more flats or separate dwellings each such flat or separate dwelling shall for the purposes of the section of this Act of which the marginal note is "Food storage accommodation to be provided" be deemed to be a house within the meaning of that section.

Separate dwellings to be provided with food storage accommodation.

PART V.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

75.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to be furnished in case of notifiable disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

76.—(1) As from the commencement of this section any parent or other person having the care or charge of a child attending at a school in the district who is aware of or has reason to suspect the occurrence of any disease to which this section applies in any person residing with him or is himself suffering from such a disease and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

Parents &c. to notify certain diseases.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall

PART V.
—cont.

be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(3) For the purpose of this section the expression " school " shall include a Sunday school.

Restrictions on
attendance at
schools and
places of
assembly.

77.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

- (a) who is or has been attending any school or any part thereof which for the time being is closed by order of the Council or of the education committee of the county council with the view of preventing the spread of a disease to which this section applies; or
- (b) who is suffering from a disease to which this section applies; or
- (c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(3) In this section the expression " day school " means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

PART V.
—cont.

78.—(1) If the Council or any committee of the Council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

Power to
close schools
and exclude
children
from enter-
tainments.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(4) In this section the expression " day school " means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

79. If any person at the request of the Council or the medical officer stop his employment for the purpose of preventing the spread of a notifiable disease the Council may make compensation to him for any loss occasioned by reason of such stoppage.

Compensation
to persons for
ceasing
employment
to prevent
spread of
disease.

80.—(1) If the medical officer certifies in writing—

(a) that any person in the district (in this section referred to as " the patient ")—

Removal of
infirm and
diseased
persons in
certain cases.

(i) is aged or infirm or physically incapacitated and resides under insanitary conditions or in premises which are insanitary owing to any neglect on the part of the occupier thereof; or

(ii) is suffering from any grave chronic disease; and

(b) that the patient is unable to devote to himself or to receive from persons with whom he resides proper care and attention; and

PART V.
—cont.

(c) that thorough inquiry and consideration have shown the necessity in the interest of the health of the patient or for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing; the medical officer may make application under this section to a court of summary jurisdiction.

(2) On any such application the court upon oral proof of the allegations in the certificate and subject (if they think fit) to examination of the patient by a registered medical practitioner nominated by the court may make an order for the removal of the patient to a suitable institution and for his detention and maintenance therein so long as the order remains in force.

(3) Where an order is for the time being in force for the detention and maintenance of the patient in a suitable institution a court of summary jurisdiction acting for the same place as the court which made the order may on the application of the medical officer make a further order for the transfer of the patient to another suitable institution and for his detention and maintenance therein so long as the further order remains in force.

(4) An order made under the foregoing provisions of this section shall unless rescinded under the next following subsection remain in force for such period not exceeding three months as may be determined by the order or such further period or periods each not exceeding three months as may be determined by a further order or orders made on the application of the medical officer by a court of summary jurisdiction acting for the same place as the court which made the original order:

Provided that no such further order shall be made unless the court are satisfied by the certificate of the medical officer of the institution in which the patient is for the time being detained and such further evidence if any as the court may require that the conditions which led to the making of the original order continue or would recur if the patient were no longer detained.

(5) At any time after the making of an order under the foregoing provisions of this section an application for the rescission of the order may be made by or on behalf of the patient to a court of summary jurisdiction acting for the same place as the court which made the order and the court may rescind the order accordingly if having regard to the circumstances of the case they are of the opinion that it is right and proper that it should be rescinded.

(6) No application shall be made under this section unless not less than three clear days' notice of intention to make the application and of the time and place when and where the application will be made has—

- (a) in the case of an application under the last foregoing subsection been given by the patient or other person making the application to the medical officer; and
- (b) in the case of any other application been given by the medical officer to the patient or to some person being in charge or formerly in charge of the patient.

(7) An order under this section may be addressed to such officer of the Council as the court making the order may think expedient and any person who wilfully disobeys or obstructs the execution of the order shall be liable to a penalty not exceeding ten pounds.

(8) The cost of the removal or transfer of the patient to or from a suitable institution and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Council and during any period for which the patient is so detained the Council may and if so required by the court shall make towards the maintenance of the dependants of the patient such contributions as the Council think fit or as may be directed by the court as the case may be:

Provided that—

- (a) where the institution to which the patient is to be removed is a public assistance institution the authority to which the institution belongs may in the exercise of their powers under any scheme made under Part I of the Local Government Act 1929 assume such obligations with regard to the maintenance of the patient and his dependants as may be agreed between that authority and the Council; and

- (b) nothing in this subsection shall apply to the cost of maintenance of the patient in a hospital vested in the Minister under the National Health Service Act 1946. 9 & 10 Geo. 6. c. 81.

(9) The Council shall recover from the patient or from any person legally liable to maintain him or from the patient's estate if he has died any costs and expenses incurred by them under subsection (8) of this section or if the Council are satisfied that the persons from whom the costs and expenses are under this subsection recoverable cannot reasonably having regard to their financial circumstances be required

PART V.
—cont.

to pay the whole of such costs and expenses such part thereof (if any) as those persons are in the opinion of the Council able to pay.

(10) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the Council so to do either generally or in any particular case in which those powers are proposed to be exercised and no order shall be made under this section for the removal or transfer of any person to a suitable institution without the consent in writing of the authority or body having the control thereof and such consent may be given subject to such conditions as may be agreed.

(11) In this section the expression "suitable institution" means a suitable hospital infirmary or other institution or other suitable place provided within the district or within a convenient distance of the district.

Entry into
premises in
case of
disease.

81.—(1) If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

Provided that the medical officer shall not under the powers of this section—

- (a) enter any premises except between the hours of seven in the morning and ten in the evening; or
- (b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

(2) Any person who obstructs the medical officer in the exercise of his power under this section shall in addition to any other punishment to which he may be subject be liable to a penalty not exceeding five pounds.

As to
defective
drains &c.

82.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil pipe is stopped up the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Council may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier summarily as a civil debt.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Council was reasonable and whether the expenses incurred by the Council in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

(3) The provisions of this section shall not apply to any building or premises (not used as a house or office or as a sanitary convenience for the public) belonging to or used by a railway company for the purposes of their railway and forming part of their railway undertaking.

83.—(1) (a) If the owner of any house or premises occupied therewith within the district represents to the Council that the occupier of such house or premises habitually maintains the same in a filthy condition any officer of the Council duly authorised in that behalf may enter upon such house or premises and inspect the same and if the Council or a committee of the Council are satisfied of the truth of the representation of such owner the occupier shall be liable on the complaint of the medical officer to a court of summary jurisdiction to be ordered to vacate the house or premises for such time to be specified in the order as may be reasonably required for remedying the condition of the house or premises by cleansing disinfecting or whitewashing or taking such other steps as may be necessary for such purpose.

Vacation of
filthy
premises
during
cleansing.

(b) Any order made under this section may be enforced in the manner provided by section 34 of the Summary Jurisdiction Act 1879.

(2) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed not to apply to a house or premises by reason only of the fact that such house or premises have been vacated in compliance with an order made under this section.

(3) Any expenses incurred by the Council under this section and not paid by the occupier shall be recoverable from the owner of the house or premises.

84. The Council may make byelaws for securing the proper ventilation and lighting of any existing stable used for the accommodation of horses (whether the same is used as such at the passing of this Act or not) and for the prevention of insanitary conditions (a) in or about or arising out of any such stable or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

Byelaws as
to stables.

PART V.
—cont.
Prohibition
on sale of
verminous
furniture.

85.—(1) No dealer shall sell or expose for sale any secondhand furniture mattress bed linen clothing or similar articles if the same are to his knowledge infested with bed bugs or if by taking reasonable precautions he could have known the same to be so infested.

(2) Any dealer offending against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) Any officer of or other person duly authorised by the Council in that behalf may enter any premises in which secondhand furniture mattresses bed linen clothing or similar articles are sold or exposed for sale for the purpose of examining whether there be any contravention of the provisions of this section.

(4) Every dealer who refuses to permit any officer or authorised representative of the Council to enter any premises or make any inspection which such officer or authorised representative is authorised under the provisions of this section to enter or make or obstructs any such officer or representative in the execution of his duty under such provisions shall be liable to a penalty not exceeding five pounds.

(5) In this section the expression "dealer" means any person (other than a pawnbroker) who trades in secondhand furniture mattresses bed linen clothing or similar articles for reward.

Byelaws as to
houseboats.

86.—(1) The Council may make byelaws for the regulation of houseboats on any navigable river in the district.

(2) Without prejudice to the generality of the foregoing subsection the said byelaws may in particular—

(a) provide for the registration of houseboats and for the renewal of such registration from time to time and prohibit the use of unregistered houseboats on any such river;

(b) prescribe—

(i) the form of application for registration and for the renewal thereof;

(ii) the particulars to be supplied and the conditions to be complied with before such applications may be granted;

(iii) the fee (not exceeding one pound) to be paid on such applications;

(iv) the period (not being less than one year) at the expiration of which the registration of a houseboat shall lapse unless renewed;

- (c) provide for the issue and renewal of certificates of such registration;
- (d) prohibit the passing into any such river from or out of a houseboat of sewage or any other offensive or injurious matter whether solid or fluid;
- (e) require such alterations of houseboats and the provision of houseboats with such sanitary appliances as the Council may think fit with a view to preventing the pollution of any such river;
- (f) authorise the inspection of houseboats by or on behalf of the Council.

(3) In this section the expression "houseboat" means any vessel or boat which is used as or is capable of being used as a place of habitation (whether such use be temporary intermittent or permanent) or as a place for accommodating or receiving persons for purposes of shelter recreation entertainment or refreshment or as club premises or as offices but shall not include—

- (a) a vessel normally engaged in the transport of persons or goods; or
- (b) any pleasure yacht used in navigation; or
- (c) any lightship or watch-barge; or
- (d) any canal boat or other boat registered under Part X of the Public Health Act 1936; or
- (e) any vessel used by a bona fide fisherman in fishing as a means of livelihood.

87. The provisions of section 268 of the Public Health Act 1936 except subsection (4) of that section shall extend and apply to any houseboat which is used for human habitation on any navigable river in the district in such a way as to be a nuisance or injurious to health or to cause a nuisance or give rise to conditions injurious to health.

Extension of section 268 of Public Health Act 1936 to houseboats.

PART VI.

HUMAN FOOD.

88.—(1) As from the commencement of this section the following provisions shall have effect in the district:—

Registration of hawkers of food.

- (a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Council;

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—cont

(b) No premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) The Council may refuse to register any person or premises under this section or (after giving one month's notice in writing to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied—

(i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food; or

(ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Council shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Council should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Council refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction (under the section of this Act of which the marginal note is "As to appeals") against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Council appointed for the purpose shall have power at all reasonable times to enter and inspect any premises

in the district in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Council shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II of that Act or under regulations made thereunder.

(8) In this section the expression " food " does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

89.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed within the district in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Council may request such person to stop his employment and on such request being made the Council may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Power to prohibit persons in advanced state of tuberculosis from selling &c. food.

(2) If any such person shall fail to comply with such request the Council may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Council to such person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

90.—(1) The occupier of any shop cellar passage or other space forming the whole or part of a building being a shop cellar passage or other space in which food (other than (a) milk (b) meat to which the Public Health (Meat) Regulations 1924 apply and (c) food which is packed in tins or other strongly constructed and impervious cases) is sold or exposed for sale or deposited for the purpose of sale or of preparation

Precautions against contamination of food.

PART VI.
—cont.

for sale or with a view to future sale shall take all such steps as may be reasonably necessary to guard against the contamination of such food by flies and shall cause such food to be so placed as to prevent mud filth or other contaminating substance being splashed or blown thereon.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty of forty shillings and to a daily penalty not exceeding ten shillings.

PART VII.

PUBLIC BUILDINGS PARKS &C.

Power to
provide
concert halls
&c.

91.—(1) In addition to the powers conferred on the Council by subsection (4) of section 26 (Acquisition of Hamilton Terrace Cliffs and erection of pump room &c.) of the Act of 1902 the Council may provide concert halls entertainment rooms reading rooms pavilions and bandstands with all offices refreshment-rooms kitchens cloak-rooms lavatories conveniences and appliances necessary and suitable in connection therewith.

(2) For the purposes aforesaid the Council may—

- (a) erect or adapt buildings in any public park or pleasure ground belonging to them;
- (b) acquire buildings or acquire land and erect buildings thereon;
- (c) with the consent of the Minister adapt any premises or erect buildings on any land belonging to them but not already appropriated to entertainment purposes;

and may provide erect and maintain shops and offices as part of the buildings so acquired or erected.

(3) The Council may furnish and equip any premises provided by them under this section.

Power to
provide &c.
entertain-
ments.

92.—(1) The Council may use or allow to be used or let any premises provided under subsection (1) of the last preceding section of this Act for concerts and other entertainments and may themselves provide or arrange for the provision of or contribute towards the expenses of any such concerts or entertainments and may make or allow to be made such charges as they think fit in connection therewith:

Provided that—

- (a) the Council shall not themselves use any such premises for a cinematograph theatre except for the exhibition of a cinematograph film relating to the functions of county councils or other local authorities

nor shall they grant or let the use of any such buildings for the purposes of a theatre music hall or cinematograph theatre except on the best terms that can be obtained;

- (b) the power of the Council themselves to provide entertainments shall include a power to provide concerts and pierrot or other entertainments whether theatrical costume is or is not used in connection therewith and either with or without appropriate scenery but save as aforesaid the Council shall not provide or arrange for the provision of stage plays performed by persons other than members of any amateur dramatic society or any entertainment for which scenery or theatrical costume is used and which forms a complete programme of variety entertainments as usually given at a music hall.

(2) The Council may provide and sell or authorise the provision and sale of programmes of any concert or entertainment given in pursuance of this section and may provide and sell or authorise the provision and sale of refreshments at the premises referred to in the last preceding section.

(3) The Council may make byelaws for securing good and orderly conduct during any concerts or entertainments given in pursuance of this section.

(4) Nothing in this or in the last preceding section shall be taken to dispense with the consent of the Minister of Education to any appropriation lease or other disposition of any lands of the Council in any case in which such consent would have been required if this section had not been passed.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition or of any enactment relating to the sale of intoxicating liquor refreshments or tobacco.

(6) The net amount of the expenses incurred by the Council under this section when added to the net amount of the expenses incurred by them in the provision of entertainments under section 76 of the Public Health Acts Amendment Act 1907 and section 56 of the Public Health Act 1925 shall not in any one year exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one penny and a third in the pound Provided that the limitation hereby imposed shall

PART VII.
—cont.

not apply in respect of any excess rate which may be approved by the Minister under the provisions of subsection (3) of section 56 of the Public Health Act 1925.

Boating
pools.

93.—(1) Subject to the provisions of this Act the Council may in any park recreation ground or open space belonging to them construct and maintain boating pools together with such buildings works appliances and conveniences as may be necessary or proper in connection therewith.

(2) The Council may make such reasonable charges as they may think fit for the admission to and use of any boating pools by this Act authorised to be constructed or any part thereof or any buildings works appliances or conveniences provided in connection therewith and the Council may if they think fit let any such buildings works appliances and conveniences.

53 & 54 Vict.
c. 59.

(3) The provisions of subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 shall apply as if a boating pool were a lake or piece of water in a park or pleasure ground provided by the Council.

(4) The Council may make byelaws for regulating the use of any such boating pool and works appliances and conveniences in connection therewith.

Charges for
and letting
of parks &c.
for games.

94. When any portion of any park or place of public resort or recreation is set apart by the Council for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Council may permit the exclusive use by any club or other body or persons of any part of any park or place of public resort or recreation set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to such charges and conditions as the Council may think fit:

Provided that nothing in this section shall empower the Council to permit at one and the same time the exclusive use of more than one-half of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than one-quarter of the total area of all such parks and places.

As to use of
parts of
recreation
grounds for
parking places.

95.—(1) The provisions of section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 shall extend to enable the Council from time to time to utilise as lands which may lawfully be appropriated as a parking place or as parking places for vehicles such part or parts of their parks recreation grounds or pleasure grounds not exceeding in the case of any park recreation ground or pleasure ground one acre or one-eighth of the area of such park recreation ground or pleasure

ground (whichever may be the less) as the Minister may sanction and the provisions of the said section relating to the utilisation for parking places of land not forming part of a street shall mutatis mutandis apply and have effect for the purposes of this subsection.

(2) The provisions of section 90 of the Road Traffic Act 20 & 21 Geo. 5. 1930 except subsections (1) (7) and (9) thereof shall apply to any parking place provided under this section. c. 43.

96. No power conferred upon the Council by the preceding sections of this Part of this Act shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Council without an order of the High Court or of the Charity Commissioners or the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person. Saving for trusts covenants &c. in conveyances and leases.

97.—(1) The Council may procure officers appointed by them for securing the observance of this Part of this Act and of the provisions of all other Acts relating to parks and pleasure grounds and of the byelaws and regulations made thereunder and approved by the chief constable of the administrative county of East Suffolk to be sworn in as constables for that purpose and the chief constable shall issue a warrant card to each officer so sworn in but any such officer shall not act as a constable unless in uniform or producing (if so required) his warrant card. Officers may be sworn in as constables.

(2) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service. 11 & 12 Geo. 5. c. 31.

98. The Council may—

(1) upon any lands already acquired by the Council and used for the purpose of a golf course or acquired or appropriated after the passing of this Act for that purpose form construct alter maintain regulate manage and use golf courses with all proper and convenient houses pavilions works buildings and conveniences;

Establishment of golf courses.

(2) make charges for the use of any of their golf courses or of any part thereof and of any buildings conveniences or apparatus provided in connection therewith;

PART VII.
—cont.

- (3) permit the use by any club or other body or persons of any of their golf courses lands buildings conveniences or apparatus aforesaid subject to such charges and conditions as the Council may think fit;
- (4) let on lease or otherwise to any club company body or persons any of their golf courses or any part thereof and the lands houses pavilions works buildings and conveniences as aforesaid for such consideration and upon such terms and conditions as the Council may think fit;
- (5) (a) provide and sell and may enter into any agreement or arrangement with any person for the provision and sale at any such golf course or in any such house pavilion or building as aforesaid of refreshments of all kinds subject to the provisions of all Acts relating thereto and may also upon such terms and conditions and for such periods as they may think fit grant to any person the right so to provide and sell refreshments;
(b) by themselves or any person appointed by them in that behalf apply for and hold licences for the sale of beer or intoxicating liquors or of tobacco for the purposes of this subsection;
- (6) make and enforce byelaws for regulating the use of their golf courses whether within or without the district and the conduct of persons using the same or resorting thereto;
- (7) employ officers and servants in connection with and for the purposes of the powers aforesaid.

Removal of
sand &c. from
seashore.

99.—(1) Any person who at any time digs carries away or removes any sand marl gravel shingle rock soil or other material from any portion of the seashore or beach above or below high-water mark for the time being owned by or leased to the Council or from any sea defence work or embankment esplanade footway or carriageway vested in the Council upon which such sand marl gravel shingle rock soil or other material has been thrown by the sea within or fronting on the district without having first obtained the licence in writing of the Council or who having obtained such licence digs carries away or removes any sand marl gravel shingle rock soil or other material from any part of the seashore or beach as aforesaid or from any sea defence work or embankment esplanade footway or carriageway as aforesaid in any quantity or manner other than the part quantity or manner permitted by such licence shall for every such offence be liable to a penalty not exceeding twenty pounds.

(2) The Council shall not grant any licence as aforesaid which shall contravene any covenant or condition subject to which a gift conveyance or lease of any portion of the sea-shore or beach has been accepted or made without the consent of the donor grantor lessor or other person or persons entitled in law to the benefit of such covenant or condition.

(3) Section 54 of the Act of 1902 is hereby repealed.

100.—(1) The Council for securing safety in navigation or for the prevention of noise or of danger obstruction or annoyance to persons boating or bathing or using the beach and foreshore for either of those purposes or otherwise may make byelaws—

Byelaws as to
boats.

- (a) requiring the fitting of efficient silencers on boats propelled by internal combustion engines;
- (b) prohibiting regulating or controlling the keeping or landing of boats on such parts of the beach and foreshore as shall be specified in such byelaws;
- (c) requiring boats of any specified class or description to be kept on such parts of the beach and foreshore as may be specified in such byelaws.

(2) The Council may charge for any licence or permission granted by them to keep a boat on any part of the beach or foreshore owned by or leased to them such sum (not exceeding one pound for each such licence or permission) as they may think fit and such sum may be recovered summarily as a civil debt.

(3) No byelaw made under this section shall affect any right or privilege of owners of boats engaged in the fishing industry which may exist at the time of the making of such byelaw and no byelaw made under paragraph (a) of subsection (1) of this section shall apply to any boat (not being a boat required to be licensed by the Council) which is ordinarily kept outside the district.

101.—(1) The powers of the Council to make byelaws and impose penalties for the breach thereof with respect to boats (whether required to be licensed by the Council or not) shall extend and be applicable for a distance of three miles seaward from low-water mark of ordinary tides.

As to byelaws
with respect to
boats and
vessels.

(2) All breaches of such byelaws committed within the said distance seaward from low-water mark may be inquired into and dealt with as if they had been committed within the district.

PART VIII.

LANDS.

Further
powers for
acquisition of
lands.

102.—(1) The Council notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable that the Council should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the district.

(2) When any lands purchased or acquired or taken on lease by the Council under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Council and pending such appropriation all expenses incurred by the Council under this section shall be payable out of the general rate fund and general rate.

Retention and
disposal of
lands.

103.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Council may retain and hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the district (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interest therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any government department to any sale lease appropriation or other disposition of any lands of the Council (other than lands acquired under any local Act applying to the Council) in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this Act had not been passed.

104. The Council on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation of easements &c.

105.—(1) The Council may accept a surrender of any lease or letting granted by them of lands acquired under the powers of this Act or any local Act for the time being in force within the district and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of the lands as aforesaid.

Powers with reference to leases of lands.

(2) The Council may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Council of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Council in their discretion.

106.—(1) The Council may (with the consent of the Minister) lay out and develop any lands at any time belonging to the Council and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave flag channel and kerb street roads and ways on any such lands.

Power to develop lands.

PART VIII.
—cont.

(2) The Council may use or dispose of the building or other materials of any houses or premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

Houses for
persons in
employment
of Council.

107.—(1) The Council may purchase or take on lease houses and other buildings for persons employed by them for the purposes of their several undertakings and may erect fit up maintain and let any such houses and buildings upon any lands for the time being belonging to the Council and (subject to the terms of the lease) upon any lands for the time being leased to the Council for those purposes.

(2) Nothing contained in this section shall empower the Council to create or permit a nuisance.

Proceeds of
sale of surplus
lands.

108.—(1) The Council may (so far as they consider necessary) apply subject to the approval of the Minister any capital moneys received by them on the resale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

(2) Any capital moneys received by the Council on the resale or exchange of or by leasing any lands acquired under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister.

Purchase of
lands for
exchange.

109. The powers of the Council of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Council by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act.

Power to
reinstate
owners of
property.

110. The Council may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired by the Council under the provisions of any general or local enactment from time to time in force in the district with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Council may pay or receive money for equality of exchange.

PART IX.

FINANCIAL PROVISIONS.

111.—(1) The Council may from time to time inde- Power to borrow.
pendently of any other borrowing power borrow at interest
the sum or sums requisite for the payment of the costs charges
and expenses of this Act and they shall pay off all moneys
so borrowed within such period as the Council may determine
not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Local Government
Act 1933 so far as they are not inconsistent with this Part of
this Act shall extend and apply to money borrowed under
this section as if it were borrowed under Part IX of that Act
and the period fixed for the repayment of any money
borrowed under this section shall as respects that money be
the fixed period for the purpose of the said Part IX.

112. It shall not be lawful to exercise the powers of As to exercise
of borrowing
powers.
8 & 9 Geo. 6.
c. 18.
borrowing conferred by this Act otherwise than in compliance
with the provisions of the Local Authorities Loans Act 1945.

113. If any money is payable to a holder of any authorised Receipts in
case of minors.
security being a minor the receipt of his guardian shall be a
sufficient discharge to the Council.

114.—(1) Notwithstanding anything contained in any other Consolidated
loans fund.
Act or Order on and after the thirty-first day of March one
thousand nine hundred and forty-seven the Council may (if
they think fit) establish a fund to be called " the consolidated
loans fund " to which shall be paid—

- (a) all moneys borrowed by the Council by the issue of
authorised securities together with any moneys
borrowed without security in connection with the
exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Council
whether from the sale of capital assets or otherwise
except such as are applied by the Council with due
authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of
other funds of the Council to comply with the terms
and conditions as to repayment attaching to their
several borrowing powers or otherwise provided for
the repayment of debt:

And there shall also be carried to the credit of the consoli-
dated loans fund the unapplied balances of all moneys so
borrowed or received and of all sums provided by the Council
as aforesaid before the date on which the consolidated loans
fund is established.

PART IX.
—cont.

(2) The moneys of the consolidated loans fund shall be used or applied by the Council—

- (a) in the redemption of authorised securities the purchase of stock for extinction or the repayment of any moneys borrowed by the Council; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Council:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet interest charges and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of the said sums and their application.

(4) The Council may pay into the consolidated loans fund any moneys forming part of any reserve capital reserve renewals repairs depreciation contingency or other similar fund (hereinafter referred to as “the lending fund”) and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Council within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and
- (b) There shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the average rate of interest payable by the Council on their current borrowings; and in the accounts of the general rate fund an amount equal to the interest as aforesaid (subject in the case of any of the said funds to any prescribed limit on the amount thereof) shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Council to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Council except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may be altered amended or revoked by a scheme made in like manner as the original scheme.

115.—(1) The Council may establish a fund to be called *Capital reserve fund* "the capital reserve fund" for the purpose of defraying any expenditure to which capital is properly applicable (other than expenditure in connection with any undertaking of the Council as from time to time existing from which revenue is derived) to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating in the accounts of the Council such sums out of the general rate fund as the Council may from time to time deem expedient Provided that—

(a) except as provided by subsection (2) (b) of this section any sum or sums so appropriated or paid to the capital reserve fund from the general rate fund shall not exceed in any financial year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925;

(b) appropriations to and payments into the capital reserve fund shall cease to be made whenever the said fund amounts to the sum of fifteen thousand pounds but if the fund is at any time reduced below the sum of fifteen thousand pounds the Council may recommence and continue the appropriations and payments until the fund be restored to the sum of fifteen thousand pounds.

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

PART IX.

—cont.

Renewal and
repairs fund.

116.—(1) The Council may if they think fit in any year apply from the general rate fund or from the proceeds of the general rate to a fund to be called "the renewal and repairs fund" any sum not exceeding the equivalent of a rate of one penny in the pound calculated according to the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed five thousand pounds.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for—

- (a) the provision maintenance and renewal of horses carts mechanically propelled vehicles stables depots boilers equipment and apparatus in connection therewith; and
- (b) the maintenance and repair of paths and apparatus in public walks and pleasure grounds and of buildings; and
- (c) the maintenance and repair of buildings (not being buildings in respect of which the Council are required by the Housing Act 1936 to keep a housing repairs account);

which are not comprised in the undertakings of the Council as from time to time existing from which revenue is derived and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

(4) (a) Pending the application of the renewal and repairs fund to the purposes authorised by subsection (3) of this section the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

Accounts of
undertakings.

117.—(1) The Council shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Council (each of which is in this

section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking (including the income from any authorised fund provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

- (a) the working and establishment expenses and cost of maintenance of the undertaking;
- (b) the interest on moneys borrowed by the Council for the purposes of or connected with the undertaking or used for those purposes under any enactment;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) paid to any reserve fund which the Council are from time to time authorised to maintain; and
- (f) any money expended on any of the purposes mentioned in the section of this Act of which the marginal note is "Application of revenue of undertakings" other than the purpose mentioned in paragraph (e) of this subsection.

(2) The Council shall show in their accounts relating to any undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

118.—(1) If in respect of any year the moneys received by the Council on account of the revenue of any of the undertakings of the Council (including the interest and other annual proceeds received by the Council in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Council out of the general rate fund in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Council may in

Application of
revenue of
undertakings.

PART IX.
—cont.

respect of that year (if they think fit but subject to the provisions hereinafter contained) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) In reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) In the renewal and (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure chargeable to capital account) the construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;
- (c) In providing a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts (i) in the case of the electricity undertaking to a sum equal to one-tenth of the aggregate capital expenditure of the Council on that undertaking and (ii) in the case of any other undertakings to the maximum reserve fund for the time being prescribed by the Council.

(2) Any reserve fund which has been provided in respect of any undertaking of the Council and which is in existence on the first day of April one thousand nine hundred and forty-seven shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Council from the undertaking in connection with which it is formed; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking; or
- (c) (subject in the case of the electricity undertaking to the consent of the Electricity Commissioners as respects expenditure chargeable to capital account) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

PART IX.
—cont.

(4) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

119.—(1) In lieu of the provisions of subsection (1) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 and of the amendments to that subsection set out in the Fifth Schedule to the Electricity (Supply) Act 1926 the following provisions (in addition to the provisions of the section of this Act of which the marginal note is “Application of revenue of undertakings”) shall apply with respect to the electricity undertaking (namely):—

Provisions as
to surplus
electricity
revenue.
16 & 17 Geo. 5.
c. 51.

If in respect of any year the moneys received by the Council on account of the revenue of the undertaking (including the interest and annual proceeds received by the Council in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the aggregate of the moneys paid or expended in respect of the undertaking for the several purposes mentioned in paragraphs (a) to (f) of subsection (1) of the section of this Act whereof the marginal note is “Accounts of undertakings” then—

(a) if the reserve fund in respect of the electricity undertaking does not amount to more than one-twentieth of the aggregate capital expended for the time being upon the undertaking the charges for electricity supplied by the Council shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the said excess;

(b) if the said reserve fund amounts to more than one-twentieth of the said aggregate capital the Council shall fix such amount as they may think fit (not being less in any case in which the said excess is more than a sum equal to one and a half per centum of the outstanding debt of the undertaking than the difference between that sum and the said excess) and the charges for electricity supplied by the Council shall be reduced by such amount or respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the amount so fixed.

PART IX.
—cont.

(2) The Council shall in every year so long as any reserve fund provided in respect of the electricity undertaking is less than the prescribed maximum transfer to that reserve fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Council in respect of all investments forming part of the said reserve fund and carried to the general rate fund.

Date of
operation of
certain
sections.

120. The three last preceding sections of this Act shall be deemed to have come into operation on the first day of April one thousand nine hundred and forty-seven.

Recovery of
rate &c. from
persons
removing.

121. If a justice is satisfied on complaint by any officer of the Council duly authorised that any person is quitting or about to quit any premises in the district and has failed to pay on demand any general rate or electricity charge which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the defaulter to meet the claim of the Council and to detain them until the complaint is determined upon the return of the summons.

As to recovery
of rates from
tenants and
lodgers.

122. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the district shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

Subscriptions
to local
government
associations
and other
expenses.

123. The Council may pay out of the general rate fund and general rate—

(a) reasonable subscriptions whether annually or otherwise to the funds of any association of local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Council at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) the reasonable expenses of the Council in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the district.

124.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner) of the Council to whom or to whose legal personal representative a sum not exceeding one hundred pounds is due from the Council on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation or other fund with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Council within such time (not being less than one month after his death) as the Council may in all the circumstances think reasonable then at the expiration of that time the Council may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in a due course of administration Provided that—

PART IX.

—cont.

As to payments due to deceased employees.

15 & 16 Geo. 5.

c. 23.

16 & 17 Geo. 5.

c. 60.

(a) the Council may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Council shall deem it reasonable to allow having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

9 & 10 Geo. 6.

c. 67.

(b) if the Council receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not pay such sum or the balance thereof in their hands to any person other than to the legal personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) The Council before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require either—

(a) a statutory declaration by the person or one of the persons to whom the Council may pay and propose to pay such sum or any part thereof in accordance with the provisions of subsection (1) of this section to the effect that the total net estate of the deceased employee (including such sum but after the deduction of debts and funeral expenses) does not exceed one hundred pounds; or

PART IX.
—cont.

- (b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

PART X.

MISCELLANEOUS.

Extension of
section 2 (3) of
Public Health
(Interments)
Act 1879.
42 & 43 Vict.
c. 31.

125.—(1) Subsection (3) of section 2 of the Public Health (Interments) Act 1879 shall be extended to enable the Council to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts or in a burial ground provided under the Burial Acts 1852 to 1906.

(2) Any such sum unless applied in any other manner duly authorised shall be invested in statutory securities and the interest thereon applied in maintaining the grave or grave space or monument in such manner as the Council think fit.

(3) Any such capital sum and the interest thereon shall be shown separately in the accounts of the Council relating to their cemetery or burial ground but the said interest shall be paid into the fund to which receipts derived from the cemetery are paid.

Power to erect
weighbridges.

126.—(1) The Council may erect and maintain on any open space or public place on or adjoining any highway in the district such weighbridges or weighing machines and offices in connection therewith as they may consider necessary or desirable for the use of the public.

(2) The Council may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing machines erected by the Council under the provisions of this section.

(4) The Council shall not erect or allow the use of any such weighbridge weighing machine or offices so as to obstruct the access to or exit from any station or depot of a railway company.

Silencers for
internal
combustion
engines.

127.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

(2) The Council shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting

and replacing to be done at the expense of the Council if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Council to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

128.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Public Health Act 1936: Noise
nuisance.

Provided that no complaint shall be made to a justice under section 99 of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case:

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means within the meaning of the said Act of preventing or mitigating it have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

(4) Nothing in this section shall affect the power of the county council to make byelaws under section 249 of the Local Government Act 1933.

129.—(1) The Council with the consent of the Minister of Transport may erect and maintain at suitable stopping places on any of the routes along which any person is for the time being authorised to run omnibuses shelters and other accommodation for passengers but shall not use for that purpose any part of a highway which is not vested in the Council without the consent of the highway authority which consent shall not be unreasonably withheld and may be given subject to such reasonable terms and conditions as such highway authority Shelters &c.
for passengers.

PART X.
—cont.

may think fit Any question which may arise as to whether any such consent is unreasonably withheld or whether any such terms or conditions are unreasonable shall be determined by the Minister of Transport.

(2) The Council may make byelaws for the regulation use and management of any such shelter and accommodation.

(3) The Council may enter and carry into effect agreements with any such person as is referred to in subsection (1) of this section for and in relation to the erection maintenance and use of any such shelters and other accommodation and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(4) The Council shall not—

- (i) erect any shelter or other accommodation so as to cause any interference with or to render less convenient the access to or exit from any station or depot belonging to any railway company; or
- (ii) erect any shelter or other accommodation on any bridge carrying any street or road over the railway of any railway company without the consent of that company which consent shall not be unreasonably withheld.

Byelaws as
to pleasure
fairs.

130.—(1) The Council may from time to time make byelaws—

- (a) for regulating the hours during which pleasure fairs may be open to the public;
- (b) for securing safe and adequate means of ingress and egress to the ground upon which any pleasure fair is held;
- (c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

(2) In this section the expression “pleasure fair” means any entertainment which is run for profit and which consists of or includes any or all of the following whether or not in combination with any other forms of entertainment that is to say any travelling circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway cocoanut shy hoop-la shooting gallery or swings or anything similar to any of the foregoing:

Provided that the said expression does not include any fair held by statute charter royal licence letters patent or ancient custom.

131.—(1) The Council may if they think fit in cases not within the Workmen's Compensation Act 1925 or the National Insurance (Industrial Injuries) Act 1946 and not entitled to benefits under the Local Government Superannuation Act 1937 grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment.

PART X.
—cont.

Power to grant allowances or gratuities in certain cases.
15 & 16 Geo. 5. c. 84.
9 & 10 Geo. 6. c. 62.
1 Edw. 8. & 1 Geo. 6. c. 68.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

132. It shall be lawful for the Council—

Provision of lectures.

(a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Council think fit and to let such rooms and to make reasonable charges for admission to such lectures; and

(b) to provide suitable rooms for art exhibitions and to permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provided that the sum to be expended by the Council in any one year on the provision of lectures shall not exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one-third of a penny in the pound in addition to any moneys received by the Council under the provisions of this section.

133. The Council may establish and maintain or may subscribe towards the establishment and maintenance of an information bureau or information bureaux in the district for the purpose of supplying information with regard to the district and neighbourhood and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof.

Power to establish information bureaux.

PART XI.

GENERAL.

134. Section 298 of the Public Health Act 1936 shall apply to offences created by or under this Act as if they were offences created by or under that Act except that the said

Restriction on right to prosecute.

PART XI.
—cont.

section shall not apply to those created by or under Part II (Electricity) or by or under the section of this Act of which the marginal note is "Byelaws as to pleasure fairs."

As to appeals.

135.—(1) Any person aggrieved by any requirement refusal or other decision of the Council or of any officer thereof under Part III (Streets and buildings) Part IV (Sewers drains &c.) Part V (Infectious disease and sanitary provisions) or Part VI (Human food) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Council shall not execute such work or take such action; and

- (c) subject to the proviso to subsection (2) of the section of this Act whereof the marginal note is "Restriction on erection of stands &c." any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Council effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

136.—(1) As respects byelaws made under this Act the Byelaws. confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be—

- (a) in the case of byelaws under Part II (Electricity) of this Act the Electricity Commissioners;
- (b) in the case of byelaws made under the sections of this Act of which the marginal notes are "Power to provide &c. entertainments" "Boating pools" "As to use of parts of recreation grounds for parking places" "Establishment of golf courses" "Byelaws as to boats" "Shelters &c. for passengers" and "Byelaws as to pleasure fairs" the Secretary of State;
- (c) in all other cases the Minister.

(2) The Electricity Commissioners may give directions that the notice referred to in subsection (3) of the said section 250 shall in the case of the byelaws referred to in paragraph (a) of subsection (1) of this section also be given in one or more newspapers circulating outside the area to which the byelaws apply.

137. When any compensation costs damages or expenses Compensation is or are by this Act or by any local Act or Order for the time how to be being in force in the district directed to be paid and the determined. method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936.

138. Whenever the Council the surveyor or the sanitary In executing inspector under any enactment or byelaw for the time being works for in force within the district execute re-execute or alter any owner Council work or do any act or thing in default or at the request of liable for negligence only.

PART XI.
—cont.

the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses payable by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Apportionment of expenses in case of joint owners.

139. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Damages and charges to be settled by court.

140. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Breach of conditions of consent of Council.

141. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Application of section 265 of Public Health Act 1875.

142. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any local Act or Order for the time being in force applying to the Council as if the same were re-enacted therein.

Inquiries.

143. The Minister the Minister of Fuel and Power and the Minister of Transport may hold such inquiries as they consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

144.—(1) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

PART XI.
—cont.
Application of
provisions of
Public Health
Act 1936.

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 293 (Recovery of expenses &c.);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 299 (Inclusion of several sums in one complaint &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative).

(2) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable to Part III (Streets and buildings) Part IV (Sewers drains &c.) Part V (Infectious disease and sanitary provisions) and Part VI (Human food) of this Act (that is to say):—

Section 277 (Power of councils to require information as to ownership of premises);

Section 287 (Power to enter premises);

Section 288 (Penalty for obstructing execution of Act);

Section 289 (Power to require occupier to permit works to be executed by owner);

Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);

Section 292 (Power to make a charge in respect of establishment expenses);

Section 295 (Power of local authority to grant charging orders);

Section 329 (Saving for certain provisions of the Land Charges Act 1925).

PART XI.

—cont.

Commence-
ment of
certain
provisions
of this Act.

145.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Council of which date public notice shall be given by the Council by advertisement in one or more local newspapers circulating in the district. Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement. Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the sections of this Act of which the marginal notes are—

“Parents &c. to notify certain diseases”;

“Restrictions on attendance at schools and places of assembly”;

“Registration of hawkers of food”;

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision comes into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) has made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under sub-section (6) of the section of this Act of which the marginal note is “As to appeals.”

146.—(1) The provisions of the Town and Country Planning Acts and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

Saving for
town and
country
planning.

(2) In this section the expression "Town and Country Planning Acts" means— PART XI.
—cont.

- (a) the Town and Country Planning Acts 1932 and 1943 22 & 23 Geo. 5.
the Town and Country Planning Act 1944 and the c. 48.
New Towns Act 1946; and 6 & 7 Geo. 6.
c. 29.
- (b) any public general Act passed or to be passed in the 9 & 10 Geo. 6.
present session repealing amending or extending the c. 68.
provisions of those Acts.

147. Nothing in this Act shall protect any person from Saving for
being proceeded against by way of indictment in respect of indictments
any matter by this Act made punishable on summary pro- &c.
ceedings or shall relieve any person in respect of any such
matter from any penal or other consequence to which he
would have been liable if such matter had not been made
punishable by this Act Provided that nothing in this Act
shall make a person liable to be punished more than once for
the same offence.

148. Nothing in this Act affects prejudicially any estate Crown rights.
right power privilege or exemption of the Crown.

149. All the costs charges and expenses preliminary to and Costs of Act.
of and incidental to the preparing applying for obtaining and
passing of this Act as taxed by the taxing officer of the House
of Lords or of the House of Commons shall be paid by the
Council in the first instance out of the general rate fund and
general rate but ultimately out of moneys to be borrowed
under the authority of this Act for that purpose.

Ch. x.

*Felixstowe Urban District
Council Act, 1947.*

10 & 11 GEO. 6.

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